

MASTER SERVICES AGREEMENT

This Master Services Agreement (hereinafter referred to as "Agreement") establishes a legally binding agreement between Recur Club Technologies Private Limited (hereinafter referred to as "Recur" or "Us" or "We" or "Our", which expressions shall, unless it be repugnant to the subject or context thereof, include its successors and permitted assigns); and AdityaNewOBsan, having its registered address at buildingNumber, buildingName, streetName, location, district, stateName, pincode, which has, through the Platform (*as defined below*), consented to enter into this Agreement (hereinafter referred to as the "**Company**", "**You**" or "**Your**", which expression shall, unless it be repugnant to the subject or context thereof, include its successors and permitted assigns) and intends to register on Platform (*as defined below*) to avail Services and is acting through persons authorised by it. Recur and the Company shall jointly be referred to as "**Parties**" and individually as "**Party**", unless the context otherwise requires.

WHEREAS:

- A. Recur and/or its Affiliates owns, operates and maintains the Platform (*as defined below*) and grants access thereto to certain eligible participants on terms and conditions agreed between Recur and such participants from time to time. The Company is engaged in carrying out *bona fide* business activities in accordance with applicable Laws (*as defined below*) and is desirous of registering on the Platform for the purpose of availing the Services (*as defined below*).
- B. Recur has agreed to register the Company on its Platform (*as defined below*) for the said Purpose and provide Services to the Company in accordance with the terms and subject to the conditions set out in this Agreement and the General Terms and Conditions (*as defined below*).
- C. Accordingly, the Parties have agreed to enter into this Agreement to set out the terms and conditions that will govern the relationship, and transactions contemplated to be undertaken, between the Company and Recur in connection with the Purpose.

NOW, THEREFORE, THE PARTIES, INTENDING TO BE LEGALLY BOUND, AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

- 1.1. Definitions: Unless otherwise defined in the Agreement by use of bold typeface enclosed within quotes, the following capitalised terms shall have the meanings set out in Part A of Schedule 1 of this Agreement.
- 1.2. Interpretation: Unless the context of this Agreement otherwise requires, the Agreement shall be interpreted in accordance with the provisions set out in Part B of Schedule 1 of this Agreement.

2. SCOPE OF SERVICES AND REGISTRATION

- 2.1. You hereby agree to seek registration on the Platform to avail the Services, and Recur hereby agrees to register the Company on the Platform and offer Services to the Company, in accordance with the terms and conditions set out in this Agreement, with effect from the Effective Date.
- 2.2. It is hereby acknowledged, accepted and agreed by You that We have agreed to grant Services to You on the basis of: (a) the Company Information provided by You to Recur in accordance with this Agreement; and (b) to the extent applicable, You having delivered to Recur prior written consents obtained from Your senior secured lenders in respect of the Transactions.

3. LISTING OF IDENTIFIED CONTRACTS ON THE PLATFORM

- 3.1. We shall, based on its review of the Company Information, provide You with: (a) access to the Platform for use thereof in accordance with this Agreement; (b) the percentage, or number, of the Identified Contracts which may be listed by You on the Platform for the Purpose; and (c) the aggregate Capital which may be availed by You through the Platform ("Permitted Limit"). We shall, at our sole discretion, be entitled to increase or decrease any unused portion of, or any future, Permitted Limits for You from time to time, based on Recur's review of the Company Information from time to time and the Transactions entered into by You with Funders. Any such change in Permitted Threshold shall be communicated to You within 2 (two) Business Days. Notwithstanding anything contained herein, We shall, in its sole and absolute discretion, be entitled to reject any of Your Contracts from being listed on the Platform.
- 3.2. You shall be entitled to list Your Active Identified Contracts and utilise

- 7.3. The representations and warranties of the Company set out in this Clause 7 shall be true, accurate and not misleading in respect of all Identified Contracts that may be listed on the Platform from time to time.

- 7.4. Each of the representations and warranties of the Parties set out in this Clause 7 is separate and independent. Each Party undertakes to promptly notify the other Party if it becomes aware of any fact, matter or circumstance (whether existing on the date of this Agreement or arising afterwards) which would cause any of its representations and warranties set out in this Clause 7, to become untrue, inaccurate or misleading in any respect.

8. TERM AND TERMINATION

- 8.1. Term: This Agreement shall come into effect from the date of its acceptance by the Parties and shall remain effective until the Agreement is terminated in accordance with the provisions of this Agreement ("Term").
- 8.2. Termination without cause: Either Party may elect to terminate this Agreement by serving upon the other Party, a 30 (thirty) days' written notice expressly stating its intent to terminate this Agreement.
- 8.3. Termination with cause: Either Party may, at its sole discretion, terminate this Agreement by providing a written notice to the other Party if the other Party breaches the terms of this Agreement or General Terms and Conditions and such breach is not remedied by the other Party within 7 (seven) days from receipt of notice informing it of such breach.
- 8.4. Termination for Insolvency: Either Party ("Non-Defaulting Party") may immediately terminate this Agreement if: (a) the other Party ("Defaulting Party") takes any action or proceedings under applicable Law for its winding-up or dissolution or any third party initiates such action which is not dismissed within 14 (fourteen) days; (b) the Defaulting Party is declared bankrupt or undischarged insolvent under applicable Laws; and/or (c) a receiver, resolution professional, liquidator, official liquidator, administrator or similar officer is appointed in respect of the Defaulting Party or any of its assets or undertakings, and such proceedings are admitted by a competent Governmental Authority under applicable Law. The Defaulting Party shall promptly notify, in writing, the Non-Defaulting Party within 24

Reserved Identified Contracts for the purpose of availing Services on the Platform. We may, at Recur's sole discretion, allow You to list a Reserved Identified Contract as an Active Identified Contract or an Active Identified Contract as a Reserved Identified Contract from time to time.

- 3.3. You hereby acknowledge and agree that: (a) the Platform is solely a technology marketplace and listing of the Company and/or an Identified Contract on the Platform shall not assure You of a Transaction with a Funder, and nothing set out herein or any other communications from Recur shall be construed as making of such offer to You; and (b) We are merely providing the Platform to enable the Transactions between You and the Funders, and We do not hold any interest in, or liability in relation to, any such Transactions, which shall be entered into between You and the Funders at Your discretion.

4. TRANSACTIONS ON THE PLATFORM:

- 4.1. Establishment of Escrow Account and NACH Mandate: To enable Recur to facilitate transactions between You and the Funders, You shall: (a) open the Company Escrow Account with the Escrow Agent; (b) provide all such information and execute all such documents as may be requested by the Escrow Agent to open the Company Escrow Account; and (c) establish a NACH Mandate (which shall not be revoked by You during the Term without Recur's prior consent) on Your designated bank account for up to an amount, and in a form and manner, agreed with Recur. We shall facilitate opening of such Company Escrow Account with the Escrow Agent.
- 4.2. Operation of the Company Escrow Account: You hereby authorise Recur to issue instructions to the Escrow Agent on Your behalf in connection with operation of the Company Escrow Account, and act as the administrator with respect to settlement of accounts in respect of Transactions entered into by You through the Platform. You shall not issue any instructions directly to the Escrow Agent. Until such time as You establish a NACH Mandate in accordance with Clause 4.1 above or in such other events agreed between the Parties, You shall ensure that an amount equal to the next payment payable by You to the Funder(s) under the Funding Agreement(s) ("Minimum Retained Amount") shall at all times be maintained in the Company Escrow Account. If the Minimum Retained Amount is used for making any payments due under the Funding Agreement, You shall promptly (and, in any event, within 7 (seven) days of such payment) replenish the Company Escrow Account with Minimum Retained Amount.
- 4.3. Transactions between You and the Funder: In respect of each Transaction, upon You and any Funder confirming the intention to enter into the Transaction in respect of one or more Active Identified Contracts listed by You on the Platform ("Traded Contracts"): (a) We shall procure execution of the Funding Agreement and all such documents as may be required to give effect to the Transaction; (b) We shall cause the Escrow Agent to give effect to payments required to be made to and from the Funder's Escrow Account, the Company Escrow Account and the Company Account, to consummate the transactions comprising the Transaction, in the manner set out in the Transaction Documents; (c) the Transaction entered into between You and the Funder in respect of the Traded Contracts shall be governed by the Funding Agreement and You shall at all times comply with the provisions of such Funding Agreement; and (d) You shall cause Identified Benefits arising out of Traded Contracts to be transferred to Company Escrow Account from time to time in accordance with the Funding Agreement, and upon being instructed by You through the Platform, We shall cause the Escrow Agent to transfer Identified Benefits received in Company Escrow Account, to be transferred to the escrow account of the Funder.
- 4.4. Relationship between You and the Funder: You acknowledge and agree

(twenty-four) hours of occurrence of any of the events set out in this Clause 8.4 and shall specify the nature of the event. Failure on the part of the Defaulting Party to notify occurrence of any of the events set out in this Clause 8.4 shall constitute material breach of this Agreement.

8.5. Consequences of termination:

- (a) Notwithstanding anything contained in this Agreement, the termination of this Agreement shall not relieve any Party of any obligation or liability accrued prior to the date of termination, whether accrued under this Agreement, the General Terms and Conditions or the Transaction Documents, all of which obligations and/or liabilities shall continue to be discharged in the manner set out herein or therein (as the case may be).
- (b) Upon termination of this Agreement in accordance with the terms hereof, each Party shall, upon being requested by the other Party in writing and at the option of such other Party: (i) return to the other Party the Confidential Information of such other Party, including copies thereof irrespective of storage or presentation medium (including all electronic and hard copies thereof), and any other material containing or disclosing any Confidential Information in its possession, power and control; or (ii) destroy the same and not make or retain any copies of such Confidential Information; provided, however, that Recur may retain copies of such Confidential Information for the limited purpose of: (a) complying with applicable Laws; and (b) enforcement or defense of a party's rights under the Transaction Documents or transactions contemplated thereby.

8.6. Termination not a bar on remedies: The right to terminate this Agreement shall be without prejudice to all rights and remedies available to the Parties under applicable Law, including without limitation, the right to seek, as an alternative to termination, specific performance of the obligations under this Agreement.

8.7. Survival of terms: The termination of this Agreement shall not affect those provisions hereof that by their nature are intended to survive such termination including, but not limited to, Clauses 6 (*Payment Terms*), 7 (*Representations and Warranties*), 8 (*Term and Termination*), 10 (*Indemnity and Limitation of Liability*), 11 (*Confidential Information*), 12 (*Governing Law and Dispute Resolution*), and 15 (*Miscellaneous*).

9. FORCE MAJEURE

If and to the extent that a Party's performance of any of its obligations pursuant to this Agreement is prevented, hindered or delayed by reason of events beyond the control of such Party, including fire, flood, earthquake, epidemic/pandemic, explosion or natural disaster or act of God, war or other violence, or any applicable law, order proclamation, regulation, ordinance, demand or requirement of any Governmental Authority, and such non-performance, hindrance or delay could not have been prevented by reasonable foresight or precautions (including proper planning and execution of the disaster recovery or business continuity plan) or circumvented through the use of alternate sources, work-around plans or other means (in each case, a "Force Majeure Event"), then the non-performing, hindered or delayed Party will be excused for such non-performance, hindrance or delay, as applicable, of those obligations to the extent that they are affected by the Force Majeure Event for as long as such Force Majeure Event continues and such Party continues to use its commercially reasonable efforts to re-commence performance whenever and to whatever extent possible without delay, including through the use of alternate sources, work-around plans or other means. Upon occurrence of a Force Majeure Event, the Party so prevented, hindered or delayed shall promptly notify the other Party to the Agreement. If the period of non-performance exceeds 30 (thirty) days from the receipt of notice of the Force Majeure Event, the Party whose ability to perform has not been so affected may give written notice to terminate this Agreement.

that Transactions between You and the Funders, including all rights and remedies that may be exercised thereunder, shall be governed by the Funding Agreements executed by You with such Funders.

- 4.5. Use of the Platform: All payments between You and the Funders pursuant to Transactions effected through the Platform shall be routed to and/or from You solely through the Company Escrow Account. You shall not enter into any arrangements in the nature of the Transaction with Funders, without: (a) Recur's prior knowledge; and (b) use of the Platform.

5. COVENANTS

5.1. Covenants of the Company: You shall:

- (a) at all times fully comply with the terms of the Transaction Documents executed by You;
- (b) during the Term, promptly (but in any event within 3 (three) Business Days of occurrence) notify Recur of: (i) any changes, modifications or amendments in any understandings relating to Identified Benefits under Identified Contracts; (ii) any events that have adversely affected, or may reasonably be expected to adversely effect, Your ability to perform its obligations under this Agreement and/ or any Funding Agreement; and (iii) failure by You to raise an invoice during any invoicing period agreed under any Identified Contract;
- (c) have provided, or shall provide, to Recur with Initial Company Information, prior to or simultaneously with entering into this Agreement;
- (d) during the Term provide Recur: (i) on a monthly basis (between the 17th and 24th day of the month), Your bank accounts' statements as of such date and latest information relating to Identified Contracts and underlying subscriptions; and (ii) on a quarterly basis (between the 17th and 24th day of the month in which the relevant Quarter ends), copies of Your bank accounts' statements as of such date, latest information relating to Identified Contracts and underlying subscriptions, management information system (MIS) and latest invoices relating to Identified Contracts;
- (e) not, during the Term, create any encumbrance of any nature whatsoever in relation to Identified Benefits (including, without limitation, creation and/or modification of any security interest or charges, and creation of interests, similar to those of the Funder, in favour of any third parties) under any Identified Contracts, in favour of any third party, without obtaining prior written consent of Recur and the respective Funder(s), if any;
- (f) not at any time disparage or defame, nor damage the goodwill and reputation of, the Services and/or the Platform;
- (g) not use the Platform except in accordance with the terms and conditions set out in this Agreement;
- (h) not, during the Term, assign, transfer, sub-contract or deal in any other manner with all or any of Your rights and benefits arising from all Identified Contracts, without the prior written consent of Recur and the respective Funder(s), if any;
- (i) not, during the Term, revoke, cancel, amend or vary the NACH Mandate;
- (j) not be entitled to set off any Identified Benefits receivable from a Client against any amount payable by You to the Client under any of the Identified Contracts;
- (k) provide Recur the first right to provide Services to Recur to meet Your further capital requirements; it being clarified that You shall be entitled to avail third party services similar to

10. INDEMNITY AND LIMITATION OF LIABILITY

- 10.1. You shall indemnify, defend and hold harmless Recur, and its employees, directors, shareholders, Affiliates and agents, promptly upon demand, from and against any liabilities, costs, charges, expenses (including reasonable and documented attorney fees and expenses), claims, demands, actions, direct damages or losses of any nature whatsoever which may, at any time, arise out of or result from: (a) any inaccuracy or breach of any representation or warranty made herein; and/or (b) fraud, gross negligence, wilful default or breach of Your obligations under this Agreement.
- 10.2. We disclaim any liability with respect to information set out on the Platform in respect of the Funders or the transactions contemplated under the Funding Agreement. Subject to the aforesaid, it is expressly agreed that in no event shall Recur's aggregate liability arising out of or in connection with any breach of this Agreement exceed the Service Fee received by Recur from You in connection with two Transactions immediately preceding such breach by Recur. Notwithstanding anything to the contrary contained herein, it is hereby acknowledged and agreed by You that the Services provided by Recur, including through the Platform, are subject to limitations posed by technology, and We is dependent on the underlying third parties including but not limited to banks, escrow agents, payment service providers, hosting service providers, and We shall not be liable for any actions or inactions attributable to any such third parties.
- 10.3. It is hereby expressly agreed that in no event shall Your aggregate liability arising out of or in connection with any breach of this Agreement exceed 1.2 (One point two times) the Permitted Limit (subject to a maximum amount of INR 50,00,000 (Indian Rupees Fifty lakhs)). Save and except as set out herein, the Parties shall not be liable for any incidental, indirect, special or consequential damages (including lost profits or lost revenues) under this Agreement, regardless of whether such liability arises in tort, contract, breach of warranty or otherwise.

11. CONFIDENTIAL INFORMATION

- 11.1. Each Party ("Receiving Party") shall keep all Confidential Information relating to the other Party ("Disclosing Party") and shall not use such Confidential Information of the Disclosing Party for any purpose other than for the purposes of the transactions contemplated under this Agreement. The Receiving Party covenants that it will not make copies of any such Confidential Information of the Disclosing Party or any part thereof except as required under this Agreement and it shall disclose such Confidential Information to only those employees, directors, officers, consultants and personnel for whom it is necessary for the performance of the obligations contained herein on a "need to know" basis. The Receiving Party shall at all times use the same degree of care, precautions and measures that it uses to protect the confidentiality of its own proprietary and Confidential Information, which shall not in any event be less than measures considered reasonable to protect such information.
- 11.2. Nothing in this Clause 11 shall restrict a Receiving Party from disclosing Confidential Information for the following purposes: (a) to the extent that such Confidential Information is: (i) in the public domain other than by breach of this Agreement, (ii) validly received by the Receiving Party without breach of any obligation owed to the Disclosing Party, and/ or (iii) is lawfully in the possession of the Receiving Party prior to disclosure by the Disclosing Party; (b) to the extent that such Confidential Information is required to be disclosed by any applicable Law or required to be disclosed to any Governmental Authority or stock exchange to whose jurisdiction such Party or its Affiliate is subject or with whose instructions it is customary for it to comply, provided that the Receiving Party shall to the extent

Our Services ("**Similar Services**"), provided that: (i) You shall give prior notice of the terms of Similar Services to Recur, in order to afford Recur the opportunity to offer its Services to You on similar terms, which opportunity shall be exercised by Recur within 10 Business Days of receipt of such notice from You, and (ii) upon Recur's inability to provide Services on such terms, You obtain Similar Services from such third party on material similar terms to those intimated to Recur pursuant to clause 5.1(k)(i); and

- (l) at all times, during the Term, provide all such co-operation or assistance as may be reasonably requested by Recur for providing Services under this Agreement.

5.2. **Breach of Funding Agreement:**

- (a) Notwithstanding anything contained herein, upon occurrence of a Default Event in respect of a Transaction, which is not cured by the Company in accordance with the Funding Agreement, the Company shall promptly (and in any event within 2 (two) Business Days after expiry of the cure period, if any) pay liquidated damages to Recur at the rate of 0.03% of the amount in default for each day that such Default Event continues. Nothing contained herein shall affect the obligations of the Company towards the Funder under the Funding Agreement.
- (b) It hereby acknowledged and agreed between the Parties that the amount of compensation or liquidated damages arrived at under this Clause 5.2 represents the genuine, fair and reasonable pre-estimate thereof considering all the facts and circumstances as the loss and damages (including loss of reputation and goodwill) that would likely be suffered by Recur and/or its Platform on account thereof. The Parties agree that the sum named above is only for the purposes of securing performance of the obligations of the Company and not for the purpose of giving to You an option of making payments under this Clause 5.2 in lieu of: (i) specific performance; or (ii) any other liability, pecuniary or otherwise, under this Agreement, all of which rights shall remain reserved. Notwithstanding anything contained herein, it is clarified that You shall not be liable to make payments in the nature of those contemplated under this Clause 5.2 more than once, whether under this Agreement or the Funding Agreement.

- 5.3. **Recur's Covenants:** During the Term, We shall provide Services to You in accordance with the terms set out herein, subject to applicable Law; it being clarified that We shall not be deemed to have provided to You any advice or recommendation for any Transaction by virtue of granting access to the Platform or providing the Services. We shall not be bound by, and/or liable under, any understandings, arrangements or agreements to which We are not a party.

6. PAYMENT TERMS

- 6.1. In consideration of the provision of the Services by Us, You shall pay to Recur a fee computed at 3% (three percent) of the Capital received by the Company pursuant to each Transaction entered into with a Funder (such fee, "Service Fee"), in accordance with this Clause 6.
- 6.2. Upon receipt of Capital from a Funder to the Company Escrow Account, We shall issue instructions, on Your behalf, to the Escrow Agent to transfer the Service Fee plus applicable GST payable to Recur, from the Company Escrow Account to the bank account of Recur.
- 6.3. The Service Fee set out in Clause 6 may be revised with mutual written consent of the Parties, from time to time.
- 6.4. **Taxes:** (a) We shall be entitled to invoice You for goods and service tax

practicable and legally permissible: (i) give the Disclosing Party whose Confidential Information is proposed to be disclosed, reasonable notice of such requirement; and (ii) reasonably co-operate with the Disclosing Party whose information is proposed to be disclosed, to obtain confidential treatment for the Confidential Information disclosed pursuant to such requirement; (c) to the extent that Recur is required to disclose Your details to its capital partners for the purpose of Recur's performance of its obligations contained herein, subject to at all times the General Terms and Conditions; and (d) to the extent that any information, materially similar to the Confidential Information, shall have been independently developed by such Receiving Party without reference to any Confidential Information furnished by the Disclosing Party.

- 11.3. Notwithstanding contained in this Agreement or any other understandings between the Parties (including under the General Terms and Conditions), the Parties agree that Recur and its Affiliates may, in accordance with applicable laws, collect, process, monitor, analyse, hold, use, (but not disclose to third parties) data, suggestions, feedback, and information collected from You in connection with the access and use of the Platform and Services, and related systems and technologies, for improvement, enhancement, maintenance and operation, and corrective or diagnostic functions in connection with the Platform and Services. The provisions contained in this clause 11.3 shall survive the termination of the Agreement.

12. INTELLECTUAL PROPERTY RIGHTS

- 12.1. Recur and its Affiliates retain all rights, title, interest and ownership of the Intellectual Property rights in and to any Services provided hereunder, the Platform and the Documentation including upgrades, copies, improvements, enhancements, derivative works and modifications thereof. Recur and its Affiliates shall not be deemed to have granted to You any rights, title, interest or license in or to the Platform or any Services provided hereunder, except for the limited rights expressly set forth in this Agreement. No rights with respect to the Platform or any related Intellectual Property Rights, other than those specified hereunder, are granted or implied by virtue of this Agreement. You shall not, directly or indirectly, dispute or contest Recur's and its Affiliates' ownership of the Platform, the non-exclusive nature of right to access the Platform granted to You, and the validity of Recur's and its Affiliates' Intellectual Property Rights in or to the Platform, or Recur's and its Affiliates' ownership thereof. You hereby agree not to take any action that would prejudice or interfere with the validity or ownership of the Platform or Recur's and its Affiliates' Intellectual Property Rights thereto or therein.

- 12.2. For avoidance of doubt, it is clarified that Recur and its Affiliates shall be and remain the owner of: (a) all Intellectual Property Rights owned by Recur and/or its Affiliates on or prior to the commencement of this Agreement; (b) all Intellectual Property Rights obtained or developed by Recur and/or its Affiliates during the Term; and (c) all Intellectual Property Rights that constitute derivative works of those items included in either sub-clauses (a) or (b) above.

- 12.3. You shall retain all rights, title, interest and ownership of the rights pertaining to the Your Intellectual Property Rights. Notwithstanding the foregoing, You hereby acknowledges and agrees that We shall be entitled to use Your name or brand name, logo and trademark for: (a) offering Services to You; and (b) with Your consent, any other purpose.

13. GOVERNING LAW AND DISPUTE RESOLUTION

- 13.1. This Agreement and the relationship between the Parties shall be governed by, and interpreted in accordance with, the Laws of India. Subject to Clause 13.2 below, the courts in New Delhi, India shall

payable to Indian tax authorities as per the applicable Laws, for Services rendered. (b) In the event: (i) You are required to deduct applicable income-tax at source on the Service Fee, and (ii) accordingly, You deposit the applicable income-tax at source with the relevant Government Authorities, You shall be entitled to receive from Recur a reimbursement of such taxes deposited by You with the relevant Governmental Authorities, after You have provided to Recur such returns and documents as may be reasonably requested by Recur to ascertain that You have paid such taxes. (c) It is clarified that You shall be responsible for bearing the applicable taxes on Services delivered pursuant to this Agreement. You shall not be liable for any penalty, interest, fine or other charges accrued due to delayed payment or non-payment of any taxes by Recur, in respect of any services. (d) Any increase in the existing rates of applicable taxes or the levy of any new or additional indirect tax on the Services shall, to the extent permitted under applicable Laws, be passed on to You.

7. REPRESENTATIONS AND WARRANTIES

7.1. Each Party hereby represents and warrants to the other Party that:

- (a) it has full capacity, power and authority (as applicable) to enter into, deliver and perform the Transaction Documents to which it is a party, and all relevant ancillary documents referred to in this Agreement;
- (b) all actions on the part of such Party necessary for the authorisation, execution and delivery of, and the performance of all obligations of such Party under the Transaction Documents to which it is a party, have been duly taken and obtained, and are and shall remain valid and in full force and effect during the Term;
- (c) it is duly incorporated and validly existing under applicable Laws of India and has the necessary power and authority to carry on its business as it is currently being conducted; and
- (d) the execution, delivery and performance (or any of the foregoing), by such Party of the Transaction Documents to which it is a party and its obligations in relation to the transactions contemplated hereunder or thereunder constitute a valid and legally binding obligation of such Party, enforceable in accordance with its or their terms and will not (as applicable): (i) conflict with or result in any material breach or violation of any of the terms and conditions of, or constitute (or with notice or lapse of time or both) a default under, any instrument, contract (including the Identified Contracts) or other agreement or arrangement (oral or written) to which it is a party or by which it is bound; (ii) give any third party a right to terminate or modify, or result in the creation of any encumbrance under, any agreement, license or other instrument (oral or written) to which it is a party to or by which it is bound; (iii) result in a violation or breach of or default under any applicable Law; (iv) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any applicable Law for the protection of debtors or creditors; and/or (v) violate any order, decree or judgement against, or binding upon, it or upon its securities, properties or businesses.

7.2. You hereby represent, warrant and covenant to Recur that: (a) the Company is not involved or engaged in any Litigation in connection with any of the Identified Contracts nor with Clients who are party to Identified Contracts and, to the best of Your knowledge, there are no circumstances which are likely to give rise to any such Litigations; (b) all Identified Contracts entered into by the Company have been duly authorised and executed, are not invalidated by any applicable Law, are subsisting and enforceable in accordance with their respective terms and

have exclusive jurisdiction over all matters arising pursuant to this Agreement.

13.2. Any dispute, controversy or claim arising out of or in connection with this Agreement, including the existence, validity, termination or breach thereof ("Dispute") which cannot be settled amicably between the Parties hereto within a period of 15 (fifteen) days from the date of receipt of the written notice in relation thereto sent by either Party, shall be referred to and finally resolved by arbitration in accordance with the provisions of the (Indian) Arbitration and Conciliation Act, 1996. Each Party shall appoint an arbitrator within a period of 10 (ten) days from the date on which written notice to initiate arbitration is delivered by the disputing Party, and the arbitrators so appointed shall then mutually appoint a third, independent arbitrator. The seat for arbitration shall be in New Delhi and the language for arbitration shall be English. The arbitration award shall be final and binding and shall be enforceable in a court of law with jurisdiction.

14. MISCELLANEOUS

14.1. Notices: All notices or other communications to be provided hereunder will be in writing and delivered by email as provided on the Platform.

14.2. Assignment: This Agreement and the rights and liabilities hereunder shall bind and inure to the benefit of the respective successors and permitted assigns of the Parties hereto. Neither this Agreement nor any right or interest hereunder will be assignable by the Company without the Recur's prior written consent. This Agreement shall be assignable by Recur to a subsidiary or Affiliate of Recur.

14.3. Severability: If any paragraph, sub-paragraph, or provision of this Agreement, or the application of such paragraph, sub-paragraph, or provision, is held invalid by a court of competent jurisdiction, the remainder of this Agreement, and the application of such paragraph, sub-paragraph, or provision to Persons, or circumstances other than those with respect to which it is held invalid, will not be affected.

14.4. No Waiver: No waiver of any breach of any provision of this Agreement nor failure and / or delay in exercising any right, power, privilege or remedy shall constitute a waiver of any prior, concurrent or subsequent breach of the same or any other provisions hereof or in any way impair or affect the exercise of such right, power, privilege or remedy, and no waiver shall be effective unless made in writing and signed by an authorised representative of the waiving Party.

14.5. Entire Agreement: This Agreement and the General Terms and Conditions constitute the whole agreement between the Parties relating to the subject matter hereof and supersede any prior arrangements, whether oral or written, relating to such subject matter. Each Party acknowledges that it has not relied upon any representation, warranty or covenant, express or implied, in entering into this Agreement, other than those expressly contained under this Agreement.

14.6. Awareness of Transaction Documents: The Company acknowledges having received upon conclusion of each Transaction Document a digital copy of each Transaction Document existing at the date hereof, and being aware of the provisions thereof. We covenant to You to inform You promptly about any amendments made to any of the Transaction Documents and the Platform, and to promptly deliver to You copies of any Transaction Documents or amendments to the agreements entered into by You after the date hereof and You hereby confirm that You will be aware of the provisions of such Transaction Documents upon such delivery.

14.7. Relationship between parties: Nothing contained in this Agreement shall constitute or be deemed to constitute a partnership between the

applicable Law, and are binding on all parties thereto; (c) no party to an Identified Contract has received notice of any breach of or default under, nor any notice for termination, repudiation or adverse variation of, any Identified Contract; (d) the Company has not assigned or waived any of its rights under any Identified Contracts and, upon the Transaction coming into effect in accordance with the Funding Agreement, the Funder shall have clear right, title and interest in the Identified Benefits transferred pursuant to the Transaction; (e) none of the Identified Contracts is executed with a 'related party' (as defined under the Companies Act, 2013) of the Company; (f) in the event of termination, or receipt of a notice for termination, of any Identified Contract by or from the Client, You shall promptly (but in any event within 3 (three) Business Days of such occurrence) notify Recur of termination, or receipt of notice for termination, of such Active Identified Contract; (g) any transactions entered into by it with the Funder through the Platform shall at all times comply with provisions of applicable Laws (including, for avoidance of doubt, the Prevention of Money Laundering Act, 2002) and all payments made by it pursuant to transactions contemplated thereunder shall be made through authorized banking channels only, and any capital availed from the Funder pursuant to any Transaction shall be used for the purpose of the *bona fide* business of the Company and not for the purpose of making any payments to any of its related parties (as defined under the Companies Act, 2013); and (h) all information (including Company Information) provided, or that may be provided, by the Company to Recur has been provided or shall be provided in good faith and is or shall be true and correct (as the case may be). The Company has not omitted or withheld and shall not omit or withhold any information reasonably requested by Recur in accordance with this Agreement, which would render such information incorrect or misleading.

Parties, and no Party shall hold itself out as an agent for the other Party or any of them.

- 14.8. Further actions: You shall, at any time and from time to time, upon Recur's written request, promptly and duly execute and deliver all such reasonable further instruments and documents, and do or procure to be done all such acts or things on a commercially reasonable best efforts basis, as may reasonably be deemed necessary or desirable to give full effect to the Transaction Documents.
- 14.9. Rights cumulative: Each of the rights of the Parties under this Agreement is independent, cumulative and without prejudice to all other rights available to them, and the exercise or non-exercise of any such rights shall not prejudice or constitute a waiver of any other right of a Party, whether under this Agreement or otherwise. No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy including right to seek restitution.
- 14.10. No set-off: Where any amount is payable by the Company to Recur under this Agreement, the Company shall not be entitled to set off that amount against any amount payable to the Company under any of the Transaction Documents.
- 14.11. Costs and expenses: Each of the Parties shall pay its own costs, charges and expenses relating to the negotiation, preparation and execution of this Agreement.

Signature block follows

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be duly executed and delivered by their duly authorised representatives.

On behalf of the Recur



Name: Abhinav Sherwal

Date: 15-05-2023

On behalf of the Company

ASHISH KRISHNASWAMY

E-Signed by ASHISH KRISHNASWAMY IYER u
investee+150505@recur.club on app.recur.club,
on 15-May-2023 at 04:02 PM IST,
using IP Address: 10.0.1.44, 3.109.26.254, 10.0.1.4

Name: ASHISH KRISHNASWAMY IYER

Date: 15-05-2023

SCHEDULE 1

Part A: Definitions

"Active Identified Contracts" means Identified Contracts that may be listed by the Company on the Platform from time to time in connection with the Purpose.

"Affiliate" means: (a) in relation to a natural Person, the Relative of such Person and a body corporate Controlled by such natural Person; and (b) in relation to any entity, any Person that Controls, is Controlled by, or is under common Control with, such entity.

"Balance Amount" means, in relation to any Default Event occurring under a Funding Agreement, the aggregate amounts payable by the Company to the Funder as of the date of occurrence such Default Event under the relevant Funding Agreement.

"Incremental Company Information", in relation to the Company, means all such information, reports, financial information, and copies of documents and/or agreements set out in Clause 5.1(d).

"Initial Company Information", in relation to the Company, means all such information, reports, financial information (including audited and unaudited financial statements, and details of charges or encumbrances created on the Company's assets), approvals obtained from Governmental Authorities, KYC of the Company and its directors and/or promoters, and copies of documents and/or agreements executed by, or relating to, the Company and/or its Identified Contracts.

"INR" means Indian Rupees, the lawful currency of Republic of India.

"Business Day" means, unless specified otherwise, a day other than a Saturday, Sunday or a declared public holiday, on which banks are open for general business in New Delhi.

"Client" means third parties, which shall not in any event be Affiliates of the Company, that have executed Contracts with the Company to avail / purchase / subscribe to the Company's goods and/or services.

"Company Account" means the bank account maintained by the Company with a commercial bank, the details of which shall have been intimated, in writing, by the Company to Recur.

"Company Escrow Account" means a special, non-interest bearing cash escrow account maintained by the Company with the Escrow Agent in accordance with the terms of the Escrow Agreement for the purpose of receiving and holding all amounts required to be exchanged between the Company, Recur and/or the Funders in respect of the Transaction.

"Company Information" collectively means Incremental Company Information and Initial Company Information.

"Confidential Information" means all information (in any format including graphic, written, electronic or machine-readable form and on any media) which is confidential and proprietary to a Party, including: (a) this Agreement and the Funding Agreement and the transactions contemplated hereby and thereby; and (b) information of value or significance to a Party such as their intellectual property, trade secrets, content, data, techniques, plans, designs, programs, customer and supplier information, organisational structure, financing relationships or terms, service provider or vendor relationships and terms thereof, processes, know-how, methodologies, or other information not in the public domain pertaining to the business or affairs of such Party, which is disclosed or exchanged between the Parties in connection with this Agreement or transactions contemplated hereby.

"Capital" means, in relation to a Transaction, the capital proposed to be availed from the Funder in accordance with the terms of the Funding Agreement.

"Contract" means written agreements executed between the Company and its Client, pursuant to which the Company is entitled to receive monetary consideration periodically from the Client in consideration of supplying goods and/or performance of services by the Company.

"Control" (including with its correlative meanings and the term "under common control with"), as used with respect to any Person, means the power, direct or indirect, to: (a) direct or cause the direction of the management and policies of such Person whether by contract or otherwise; or (b) control the majority of the composition of the board of directors or any other managing/governing body of such Person. In any event, and without limiting the generality of the foregoing, for purposes of this Agreement, any Person owning more than 50% (fifty percent) of the voting securities or economic interest of another Person will be deemed to Control that Person.

"Default Event" means failure by the Company to make payments required to be made to the Funder in accordance with the Funding Agreement.

"Dispute" has the meaning ascribed to the term in Clause 13.2 above.

"Documentation" means Recur's technical, functional or other supporting documentation or material which may be made available through the Platform and includes printed or electronic user manuals, guides or instructions regarding the use of the Platform.

"Escrow Agent" means Trustmore Technologies Private Limited, a company incorporated under the provisions of the Companies Act, 2013 and having its registered office at 210, Tower C, Pioneer Urban Square Golf Course Extension Road, Sector 62, Gurgaon 122012, Haryana.

"Escrow Agreement" means the escrow agreement executed amongst the Company, the Escrow Agent and Recur.

"Funder" means a Person registered on the Platform who shall be eligible to transact with the Company in connection with the Purpose in accordance with the terms of the Funding Agreement.

"Funding Agreement" means a written agreement executed between the Company and a Funder to record the terms of the Transaction.

"GST" means goods and services tax applicable under the terms of the Central Goods and Services Act, 2017;

"General Terms and Conditions" means the 'Terms of Use' and the 'Privacy Policy' available on the Platform, in each case, as amended from time to time.

"Intellectual Property" means and includes ideas, concepts, creations, discoveries, inventions, improvements, know-how, trade or business secrets; trademarks, service marks, designs, utility models, tools, devices, models methods, procedures, processes, systems, principles, algorithms, domain names, websites, web and mobile applications, works of authorship, flowcharts, drawings, books, papers, models, sketches, formulas, proprietary techniques, copyright, and other confidential and proprietary information, databases, data, documents, instruction manuals, records, memoranda, notes, user guides, in either printed or machine-readable form, whether or not copyrightable or patentable or protectable under any other intellectual property Law, or any written or verbal instructions or comments, and all other intellectual and industrial property rights throughout the world, any and all goodwill associated with and symbolised by the foregoing items.

"Intellectual Property Rights" means and includes: (a) all rights, title, and interest under any Law including patent rights; copyrights including moral rights; design rights; and any similar rights in respect of Intellectual Property, anywhere in the world, whether negotiable or registrable or not; (b) any licenses, permissions and grants in connection therewith; (c) applications for any of the foregoing and the right to apply for them in any part of the world; (d) right to obtain and hold appropriate registrations in Intellectual Property anywhere in the world; (e) all extensions and renewals of the foregoing; and/ or (f) causes of action in the past, present or future, related thereto including the rights to damages and profits, due or accrued, arising out of past, present or future infringements or violations thereof and the right to sue for and recover the same.

"Law" means and includes all applicable statutes, enactments, acts of legislature or the parliament, laws, ordinances, rules, by-laws, regulations, notifications, guidelines, policies, directions, directives and orders of any Governmental Authority, tribunal, board, court or a recognised stock exchange in India or abroad having jurisdiction over the relevant Party.

"Litigation" shall mean any action, demand, legal action, dispute, claim, proceeding, suit, civil and criminal action, prosecution or formal written inquiry by a Governmental Authority, made or brought by or against a Person, and all legal proceedings, investigations, inquiries, show-cause notices, whether before any Governmental Authority or any arbitrator.

"NACH Mandate" means the authorisation provided by the Company to Recur to cause payments, contemplated under the Funding Agreement, to be transferred from the Company's designated bank account to the Company Escrow Account, through exercise of the National Automated Clearing House facility offered by National Payments Corporation of India.

"Platform" means the marketplace and discovery platform (available at the website <https://www.recurclub.com>, the mobile application 'Recur Club' and other associated applications, products, websites and services), owned and operated by Recur and/or its Affiliates.

"Persons" means and includes an individual, proprietorship, partnership, corporation, company, unincorporated organisation or any association, trust or other entity, whether incorporated or not.

"Purpose" means access to the Platform and use of Recur's Services by the Company for discovering and identifying Funders and availing capital from such Funders, by entering into Transactions in accordance with the Funding Agreement.

"Quarter" means a recurring three-month period, commencing from the Effective Date.

"Relative" has the meaning ascribed to the terms under the Companies Act, 2013.

"Reserved Identified Contracts" means all Identified Contracts exclusive of Active Identified Contracts.

"Services" means the following services: (a) providing access to the Platform, to the Company, for use in accordance with the terms of this Agreement and in connection with the Purpose; (b) undertaking a limited due diligence on the Company based on Recur's proprietary model and specifying Permitted Threshold available to the Company; and (c) assisting the Company in entering into Transactions with Funders for the Purpose, and facilitating the operation of such Transactions between the Company and the Funder (including by reaching out to the Company and the Funders from time to time through email, messages, updates on the Platform or other forms of communications), on terms and conditions agreed under the Transaction Documents.

"Governmental Authority" means and includes any statutory authority, government department, agency, commission, board, tribunal, court or other entity authorised to make Laws.

"Identified Benefits" means right and interest in all payments arising out of Active Identified Contract(s) or Reserved Identified Contract(s) (as the case may be), executed between the Company and its Client(s), which monetary benefits shall be payable by the Client(s) in INR in the ordinary course of business, in accordance with the terms of such Identified Contract(s), it being clarified that Identified Benefits shall not comprise of any obligations and/or liabilities of the Company under the Active Identified Contract(s) or Reserved Identified Contract(s).

"Identified Contract" means a Contract which: (a) is shared by the Company with Recur for Recur's review for the purpose of listing on the Platform from time to time; and (b) is confirmed by Recur as meeting Recur's eligibility criteria for listing of Contracts on the Platform pursuant to Recur's due diligence.

"Transaction" means a transaction entered into between the Company and a Funder to provide for capital to be advanced by a Funder to the Company in consideration of transfer of monetary benefits arising from Identified Benefits to be transferred to the Funder, through the Platform, in accordance with terms and conditions agreed between the Company and the Funder.

"Transaction Documents" means this Agreement, the Funding Agreement, the Escrow Agreement and all such documents as may be executed to give effect to transactions contemplated hereunder or thereunder.

Part B: Interpretation

1. Words importing the singular include the plural and vice versa, where the context so requires. Reference to any gender includes a reference to all other genders.
2. Reference to any Law (including all delegated legislations issued thereunder) will include such Law, as amended, supplemented or re-enacted, from time to time.
3. Reference to the words "include" or "including" or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding such terms.
4. Reference to writing or written includes any mode of reproducing words or text in legible form including electronic emails.
5. Reference to this Agreement or any other agreement, deed or other instrument or document will be construed as a reference to this Agreement or such other agreement, deed or other instrument or document as amended, varied, supplemented or novated by Recur, from time to time.
6. The provisions of this Agreement will be read and interpreted in conjunction with the schedules and annexures hereto. In the event of there being an inconsistency in the interpretation of the provisions of this Agreement and the schedules or annexures, the terms of this Agreement will take precedence.
7. Any obligation on a party not to do something includes an obligation not to allow that thing to be done.
8. Unless specified otherwise in this Agreement, time is of the essence in the performance of the Parties' respective obligations and if any time period specified herein is extended, such extended time shall also be of essence;
9. If any provision in Schedule 1 is a substantive provision conferring rights or imposing obligations on any Party, effect shall be given to it as if it were a substantive provision in the body of this Agreement.
10. None of the provisions of this Agreement shall be construed against or interpreted to the disadvantage of the Party responsible for the drafting or preparation of such provision or this Agreement.
11. Headings and titles in this Agreement are indicative and for convenience only and will not be deemed part thereof or be taken into consideration in the interpretation or construction thereof.